

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 20, 2018

Honorable Eric M. Nakata
Judge of the Superior Court
County of San Bernardino
14455 Civic Drive
Victorville, CA 92392

Re: Koger, Jeremy Michael
CDC No.: F70647
Case No.: FVI900985
Date of Sentence: 04/23/2010

Dear Honorable Eric M. Nakata:

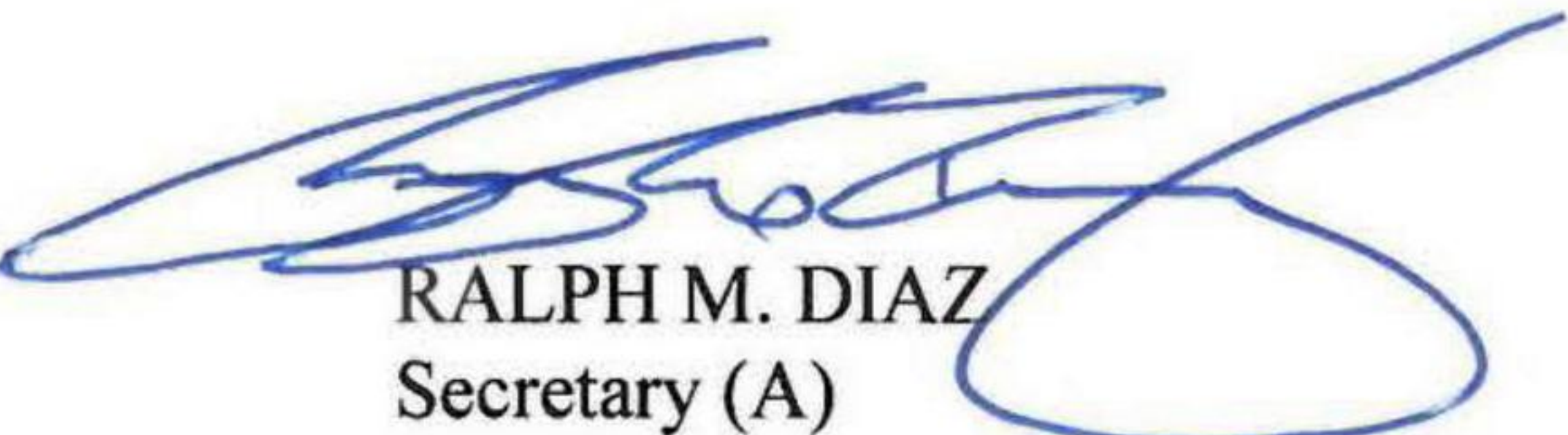
The purpose of this letter is to provide the court with authority to resentence Jeremy Michael Koger pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Koger was sentenced in 2010, and was convicted of section 245, subdivision (A)(1), ASSAULT WITH DEA. The trial court sentenced inmate Koger on 04/23/2010. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Koger's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Koger's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable John P. Vander Feer, San Bernardino County Presiding Judge
San Bernardino District Attorney
Private Attorney

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE

[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

0905340306
1-31-88 CR-290
6/1/16
F70647

SUPERIOR COURT OF CALIFORNIA, COUNTY OF:
SAN BERNARDINO

PEOPLE OF THE STATE OF CALIFORNIA vs.

DOB: 01/31/1988

FVI900985 -A

DEFENDANT: JEREMY MICHAEL KOGER

AKA:

CID#: A25800798

BOOKING #: 0905340306

☐ NOT PRESENT

COMMITMENT TO STATE PRISON
ABSTRACT OF JUDGMENT

☐ AMENDED
ABSTRACT

ENTERED INTO OBIS

DATE OF HEARING
04/23/2010

DEPT. NO.
V3A

JUDGE
ERIC M NAKATA

CLERK
Tobi Andre

REPORTER
Glenora Melendez

PROBATION NO. OR PROBATION OFFICER

COUNSEL FOR PEOPLE
BRITT IMES

COUNSEL FOR DEFENDANT
MARGARET MENDOZA

☐ APPTD

1. Defendant was convicted of the commission of the following felonies:

(number of pages attached)

Additional counts are listed on attachment

CNT.	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO/DAY/YR)	CONVICTED BY			TERM (L/M/U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (Refer to page 2)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS	MOS.
2	PC	245(A)(1)	ASSAULT WITH DEA	09	04/23/10			X	U							4	

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
2	PC 12022.7(A)	03	PC 186.22(B)(1)(B)	05					8

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. ☐ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM

12

This form is prescribed under PC 1213.5 to satisfy the requirements of PC1213 for determinate sentences. Attachments may be used but must be referred to in this document.

Page 1 of 2

PEOPLE OF THE STATE OF CALIFORNIA vs. JEREMY MICHAEL KOGER	
DEFENDANT:	
FVI900985	-A -B -C -D

9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

a. Restitution Fine(s):

Case A: _____	per PC 1202.4(b) forthwith per PC 2085.5;	_____ per PC 1202.45(b) suspended unless parole is revoked
Case B: _____	per PC 1202.4(b) forthwith per PC 2085.5;	_____ per PC 1202.45(b) suspended unless parole is revoked
Case C: _____	per PC 1202.4(b) forthwith per PC 2085.5;	_____ per PC 1202.45(b) suspended unless parole is revoked
Case D: _____	per PC 1202.4(b) forthwith per PC 2085.5;	_____ per PC 1202.45(b) suspended unless parole is revoked

b. Restitution per PC 1202.4(f):

Case A: _____	☐ Amount to be determined	to ☐ victim(s)*	☐ Restitution Fund
Case B: _____	☐ Amount to be determined	to ☐ victim(s)*	☐ Restitution Fund
Case C: _____	☐ Amount to be determined	to ☐ victim(s)*	☐ Restitution Fund
Case D: _____	☐ Amount to be determined	to ☐ victim(s)*	☐ Restitution Fund

*List victim name(s) if known and amount breakdown in item 11, below.)

c. Fine(s):

Case A: _____	per PC 1202.5.	_____ per VC 23550 or _____	days	☐ county jail	☐ prison in lieu of fine	☐ CC	☐ CS
Case B: _____	per PC 1202.5.	_____ per VC 23550 or _____	days	☐ county jail	☐ prison in lieu of fine	☐ CC	☐ CS
Case C: _____	per PC 1202.5.	_____ per VC 23550 or _____	days	☐ county jail	☐ prison in lieu of fine	☐ CC	☐ CS
Case D: _____	per PC 1202.5.	_____ per VC 23550 or _____	days	☐ county jail	☐ prison in lieu of fine	☐ CC	☐ CS

d. Lab Fee and Drug Program Fee:

Case A: Lab Fee: _____	per HS 11372.5(a) for counts _____	☐ Drug Program Fee of \$150 per HS 11372.7(a).
Case B: Lab Fee: _____	per HS 11372.5(a) for counts _____	☐ Drug Program Fee of \$150 per HS 11372.7(a).
Case C: Lab Fee: _____	per HS 11372.5(a) for counts _____	☐ Drug Program Fee of \$150 per HS 11372.7(a).
Case D: Lab Fee: _____	per HS 11372.5(a) for counts _____	☐ Drug Program Fee of \$150 per HS 11372.7(a).

10. TESTING

a. ☐ AIDS pursuant to PC 1202.1 b. ☒ DNA Pursuant to PC 296 c. ☐ other (specify):

11. Other orders (specify) **An Additional Assessment of \$60.00 is imposed per count. Rest Fine of \$200.00 pursuant to 1202.4 PC to be remitted to the Trial Court Trust Fund. COURT RECOMMENDS FIRE CAMP stayed pending successful completion of parole.**

12. EXECUTION OF SENTENCE IMPOSED

- a. ☒ at initial sentencing hearing.
b. ☐ at resentencing per decision on appeal.
c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d)).
e. ☐ other (specify):

13. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	420	357	63 ☒ 4019 ☒ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentenced Pronounced: 04/23/10		Time Served in State Institution: ☐ DMH ☒ CDC ☐ CRC	

14. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☐ the reception center designated by the director of the California Department of Corrections.
☒ other (specify): **Chino**

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE 	04-30-10
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